

complaint

Mr G has complained that when arranging home insurance for him, Ageas 50 Limited (trading as RIAS plc) failed to bring to his attention exclusions in cover for certain insured events if the home was left unoccupied. He considers that this has resulted in his claim for theft being declined by his insurer.

background

When Mr G returned to his property having been outside of the UK for a period of time, he discovered that a number of his home contents were missing. Mr G made a claim under his home insurance policy for these items, believing them to have been stolen by individuals who had visited his home whilst he was away.

Mr G's insurer declined the claim made on the basis that loss resulting from theft was excluded under the policy where the property was unoccupied. 'Unoccupied' was defined in the policy as when the home was "*(n)ot lived in by you or your family for more than 60 consecutive days.*" Mr G complained to RIAS as he considered that when it had arranged the policy for him, it had failed to bring to his attention exclusions to cover where the home was unoccupied. Mr G stated that if the exclusions had been brought to his attention, he would have made arrangements to ensure that his property was not left unoccupied as defined within the policy.

Our adjudicator did not uphold this complaint. He noted that the exclusion for cover for unoccupied properties was not an unusual one in home insurance policies. The adjudicator also commented that when RIAS had initially arranged home insurance cover for Mr G, it had asked him whether the home was to be left unoccupied for more than 60 consecutive days, and that he had replied 'No'. Combined with the documentation that Mr G had been sent by RIAS when cover commenced, and at each policy renewal, the adjudicator's conclusion was that RIAS had sufficiently brought to Mr G's attention that certain cover under the policy would not apply where the home had not been lived in for more than 60 consecutive days.

Mr G disagreed with the adjudicator's findings. His view remains that the '*Policy Summary*' booklet that he received did not adequately bring to his attention exclusions which would apply to cover when the home was left unoccupied. Whilst accepting that he had confirmed when applying for cover that he would not be away from his property for more than 60 consecutive days, Mr G stated that the significance of this had not been explained to him when he applied for the policy.

my findings

I have considered all the available evidence and arguments to decide what is fair and reasonable in the circumstances of this complaint.

I would agree with the adjudicator that the exclusions to cover when the property is not lived in for more than 60 consecutive days that apply under Mr G's policy are not unusual to home insurance policies. The crux of this complaint relates to whether the exclusion for theft where the property is unoccupied that has been relied upon by the insurer to decline the claim was sufficiently brought to Mr G's attention in the documentation that he received.

I note that Mr G has stated that the only policy documentation he received from RIAS between commencing cover in 2008 and his claim for theft in 2011 was a '*Policy Summary*' booklet. RIAS states that it sent the policy book containing all policy terms and conditions to Mr G in 2008, but Mr G has explained that he did not receive this. I have no reason to question RIAS's assertion that it did send this document, or Mr G's assertion that he did not receive it. However, I note that the '*Policy Summary*' confirmed that it did not contain the full conditions relating to the insurance policy, stating that these were contained in the policy wording. On balance it seems to me that if Mr G had not received the full policy wording, he could reasonably have called RIAS to request this.

The '*Policy Summary*' confirmed that there were exclusions relating to cover for loss or damage in respect of certain insured events where a property was unoccupied. I acknowledge Mr G's comments that he did not appreciate the significance of leaving the property unoccupied for 60 consecutive days when he stated that this would not be the case upon application and renewal of his insurance cover. However, my view is that the information he provided RIAS at these times indicated to it that the exclusions for cover for unoccupied properties would not be significant limitations under the insurance policy for Mr G.

I am sorry to learn of the loss of the items that Mr G suffered whilst he was away from his property. However, my view on balance is that in this case, RIAS sufficiently brought to Mr G's attention that exclusions to cover would apply when the property was not lived in for more than 60 consecutive days.

my final decision

My final decision is that I do not uphold this complaint, and I make no award.

John Swain
ombudsman